

Crl. Misc.No.221977-B of 2018.

Muhammad Waseem alias Vicky

The State etc.

04.12.2018

Mr. Tauqeer Hassan Butt, Advocate for the petitioner.

Mr. Muhammad Zul Sabtain Aamir, DDPP and Imran, ASI along with record.

Mr. Farhad Ali Shah, Advocate for the complainant.

The petitioner seeks post arrest bail in case FIR No.566-2013, dated 20.10.2013, under Sections 302/324/148/149/109 PPC, registered at Police Station Badami Bagh, Lahore.

2. Arguments heard and record perused.

3. I have noticed that this is 2nd post arrest bail petition filed by the petitioner, whereas first on statutory delay in trial. Earlier bail application bearing Crl. Misc.No.1276-B of 2017 was dismissed on 05.06.2017. Thereafter petitioner filed instant bail petition of statutory delay in conclusion of trial. Undeniably the petitioner is named in the FIR with the allegation of collective firing along with his co-accused resulted into murder of the real brother and Bhabi of the complainant whereas two persons were injured. But fact remains that the petitioner was arrested on 20.01.2014. First of all, I examined the record of the case and report requisitioned from the trial court to find out whether the delay in trial is

substantially or materially attributable to the petitioner himself. For this purpose, I have perused the report and copies of order-sheets of the criminal proceeding. Charge was framed by the learned trial Court on 21.10.2014. After that the case was first fixed for recording evidence and prosecution evidence was summoned. Since then, till date, no prosecution witness has been examined. From the report on most of the dates, prosecution did not pursue the case and seventy (70) adjournments were provided to the prosecution for production of evidence but the prosecution failed to produce evidence. The adjournments sought by the prosecution are more than adjournments sought by the defence. Except this, there is nothing in the order sheets, which reflects that the evidence could not be recorded because of the reason attributable to the petitioner. The gravity of allegation, at one stage, has to yield to consideration of individual liberty and cannot be allowed to deny bail to an accused even in a case where despite he having completed almost 4 years and ten months in Jail, not a single prosecution witness is examined. Period of 4 years and ten months is quite a long period of an individual detention during trial. It becomes a matter of more concern when the Court finds that the prosecution has not been able to take off despite lapse of such a long time inasmuch as not a single witness has been examined. There is nothing on the record to show that either the petitioner is previously convict or a hardened, desperate and dangerous criminal.

4. For what has been stated above, this petition is *allowed* and petitioner is *admitted to post arrest bail* subject to his furnishing bail bonds in the sum of Rs.5,00,000/-with one surety in the like amount to the satisfaction of the learned trial court.

(Aalia Neelum)
Judge

Approved for reporting.

Judge

**Tariq*